Buying the Cave in Public: Witnessed Legitimacy, Continuity after the Akeidah, and the Covenantal Republic in the Week of Chayei Sarah

Parshat Chayei Sarah · Shabbat 7 November 2026

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Prepared in deep partnership and cooperation with Grok and xAI

Updated 4 November 2026 / 24 Cheshvan 5787

On Sunday, 1 November 2026, Justice Noam Sohlberg, chairman of the Central Elections Committee, stated publicly that the elections for the 26th Knesset "were conducted properly," that "the election results reflect the will of the voters," and that "even if the suspicions are confirmed, this does not detract from the integrity of the election process or the election results as a whole." He spoke alongside Shin Bet Director David Zini and Attorney-General Gali Baharav-Miara. A joint team of the Shin Bet, police, and prosecution continues the investigation into suspicions of foreign funding and interference.

On 2 November 2026, Sohlberg declined a request from members of the outgoing coalition for a briefing on the investigation before publication of results, writing that "elections have results. Those results do not depend on the consent of the majority group in the outgoing Knesset, or its representatives," and that interpreting the committee's powers as allowing it to block publication would contradict fundamental democratic principles.

On 4 November 2026, Sohlberg presented the official results to President Isaac Herzog. The Central Elections Committee ratified the results. Casting doubt on the integrity of the process was described as a real danger. The investigation continues, but authorities have stated that it does not undermine the overall results. Official results alone are authoritative. Claims of specific foreign-funding mechanisms remain open questions under investigation, not findings.

This is the week of Parashat Chayei Sarah. Daily Chumash for 23 Cheshvan was the third portion (Genesis 24:10–26): Eliezer at the well and Rivkah's excess of kindness. Hayom Yom for 23 Cheshvan records the Tzemach Tzedek's answer when accused of rebellion against the government during the Petersburg conference of 1843: a rebel against the government risks death of the body; a rebel against the Kingdom of Heaven risks death of the soul. Which is worse? Rambam's Positive Mitzvah 245 concerns conducting business with clear contracts and ownership transfer. Tanya (Iggeret HaKodesh, Epistles 29–30) stresses the multiplicity of mitzvot actions and the Oral Torah as crown.

The themes of public title, continuity after crisis, and witnessed legitimacy run through the week's portions and map onto the present.

Torah Foundations: Full-Price Purchase before Witnesses

Avraham insists on buying the cave of Machpelah at full price, in public, before the sons of Ches, at the gate of the city. He rejects the offer of a gift. Genesis 23:9: "that he

may give me the cave of Machpelah… for the full price he shall give it to me in your midst for a burial possession." Rashi explains "bekesev maleh" as full value, parallel to David's insistence with Aravnah (1 Chronicles 21:22, 24). Ramban on 23:11 notes that even after payment Avraham first takes symbolic possession (hazakah) before witnesses—the merchants and residents at the gate—before burying Sarah. The transaction is recorded so that later claims cannot reverse it.

Different approaches appear among the commentators. Some midrashic voices treat the episode as one of Avraham's tests. Academic readers of the text note the oral character of the ancient contract and the role of Hittite witnesses. Traditional halakhic analysis (Bava Batra and later poskim) holds that payment of money effects kinyan mid'Oraita even from non-Jews; the Sages required additional documentation for security of title. The Rebbe in Likkutei Sichot on Chayei Sarah stresses that the insistence on full price is not mere commercial scrupulosity; it establishes irreversible, legitimate title in the land. Avraham refuses the gift because a gift can be retracted; a full-price public purchase cannot. The public character of the act is essential.

Midrashic tradition notes three places for which Israel paid full price so that no later claim of theft could be raised: the Cave of Machpelah, the site of the Temple, and the burial place of Joseph. Clear, public transfer is built into the story.

This is the model for election integrity. Sohlberg's public statements that the process was conducted properly, that investigation continues, and that the results stand are the contemporary equivalent of weighing out the silver before the sons of Ches. Legitimacy is not assumed; it is witnessed. Open questions on foreign funding remain open precisely because the process treats them as open. A republic does not resolve contested claims by private assertion or by refusing to publish results.

Continuity after the Akeidah and Rivkah's Excess of Chesed

Rashi links Sarah's passing to the news of the Akeidah. Continuity is not automatic. The servant's mission to secure the next generation is the work of establishing title for those who come after. In the third portion, Eliezer tests for chesed at the well. Rivkah draws water for the camels—more than was asked. Excess of kindness is not the same as unlimited accommodation. It is the surplus that secures the partnership.

The question raised, in the week of Chayei Sarah, is whether covenantal duty includes excess of kindness beyond what is strictly asked. Different approaches exist: some treat draft and service questions as pure politics; others treat them as questions of partnership under a shared framework. The surplus of chesed—Rivkah's extra water—has an analogue in the work of maintaining the shared framework that makes title possible.

Ger v'Toshav and the Question of Belonging

Avraham presents himself as "ger v'toshav"—stranger and resident—before the sons of Ches. The dual status is not a problem to be solved by assimilation or by exclusion; it is the covenantal condition. Who belongs is determined by consent to the framework and by conduct within it, not by blood alone or by gift.

In the consultations that follow presentation of results to the President, the question of coalition partners is properly framed as a question of principles and conduct, not as a contest of named persons. Frame influence as questions. Criticize ideas and actions with sources. The official results went to President Herzog on 4 November 2026. The rest is the work of the covenant.

Republican Political Theory and Orthodox Sources

Daniel Elazar's work on covenant as the foundation of Jewish political tradition makes the parallel precise. Covenant is not organic hierarchy nor pure contract; it is a morally binding pact among partners that establishes a new framework, dissoluble only by mutual agreement, supported by a transcendent reference. Avraham's purchase is the first formal stake in the land; it is also the political act of establishing standing as "ger v'toshav." Elazar recovers the biblical covenant as the prior source of federal liberty. The American Founding, on this reading, is not the pure product of secular contract theory but a later expression of covenantal partnership.

Eric Nelson's *The Hebrew Republic* argues that early-modern European political thought became less secular, not more, through the Christian encounter with Hebrew sources. Christian Hebraists treated the Mosaic constitution as a model of the perfect republic. Nelson identifies three claims introduced into European theory by this revival: republican exclusivism, egalitarian property measures, and religious toleration. The Torah's polity is national and covenantal at once. Continuity after the Akeidah is the work of establishing title for those who come after.

Yoram Hazony's recovery of nationalism as loyalty to a particular people and its texts, rather than abstract individualism or imperial universalism, sits in productive tension with Elazar. The Torah's polity is particular. The risk is that particularity can harden into domination. The corrective is the public, witnessed character of title.

Philip Pettit's republicanism defines freedom as non-domination rather than non-interference. Domination is the capacity for arbitrary interference. Non-domination requires institutional protections that make arbitrary power difficult. The Central Elections Committee's public process, the open investigation, and the refusal to withhold results pending a finding are precisely the institutional forms that prevent

private claims from dominating the outcome. Madison's Federalist concern with the design of institutions that channel ambition and require public checks finds its earlier expression in Avraham's insistence on the gate of the city.

David Novak's work on the Jewish social contract emphasizes the thick communal entry into a thinner contractual framework. Rights are not prior to community; they are articulated within it. The covenantal model resists the privatization of religion while preserving the public character of legitimacy.

Different approaches exist. Some readings treat the process as secondary to outcomes; others treat particular loyalty as sufficient; others treat the framework as optional. Orthodox sources from Rashi and Ramban through the Rebbe and Rambam's business laws converge on clear, public, full-price transfer as the condition of legitimate possession. The 2026 election process, as stated by Sohlberg and the committee, meets that condition in its public character and its refusal to withhold results pending investigation. Open questions remain open.

Synthesis and Limits

The week of Chayei Sarah is the moment when continuity is secured by witnessed acts: the purchase before the gate, the servant's prayer at the well, the excess of kindness that draws more water than asked, the public statement that the election was conducted properly while investigation continues. Official results were presented to President Herzog on 4 November 2026. The rest is the work of the covenant.

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